

**COURSE CODE**  
***BAM 113***

**COURSE TITLE:**  
***PRINCIPLES OF LAW***

## DEFINITION OF LAW

Law can be defined as a rule or body of rules made by institutions, bodies and persons vested with the power to make rules and such rules are binding and enforced among members of a given state or society.

Law can also define as the entire body of principles that govern human conduct and the observance of which can be enforced among the members of a given state. It must be noted that "Law" within the context of the above definitions cannot be regarded as GOD-given as contained in the holy books. This is because the Law's contained in the holy books are referred to as morality. It deals with a person's relationship with God and the various religious beliefs helps to guide its observance. Therefore the ability to enforce and punish a person who violates the Law is the main distinction between law and morality. The sanction for a breach of the rules of morality is the anger, repulsion and surprise which might be expressed by fellow members of the society. Acts like homosexuals, fornication, lesbianism etc. are regarded as moral wrongs.

It must however be noted that some acts are both moral and legal wrong. Examples are acts like murder, rape, stealing. It can therefore be concluded that morality and law cannot be separated.

Law once made is meant to be obeyed and there is a sanction for any act of violation or defiance.

## SOURCES OF NIGERIAN LAW

Sources of Nigeria Law mean the various ways in which the law governing the society came into existence. The main sources of the Nigerian Law are:-

### 1. The Received English Law

The English Law remains an important source of Nigerian Law. This is because of Nigeria's colonial heritage as English Law was introduced into different parts of the country following the establishment of British colonial administration in the nineteenth century. As an illustration *Section 45 of the Interpretation Act Cap 123 LFN 2004 provides thus;*

"Subject to the provision of this section and in so far as other provision is made by any Federal Law, the common law of England and the doctrines of equity, together with the statutes of general application that were in force in England on the 1<sup>st</sup> of January, 1900 shall be in force in Lagos and, in so far as they relate to any matter within the exclusive legislative competence of the Federal Legislature, shall be in force also were in the Federation".

### COMMON LAW

The term common Law simply means the law that was common to all England. It also embraced the general and local customs of the English people of old. The common Law was characteristically rigid and highly technical in application. Its application was also harsh and unfair to people. This gave room for the introduction of "Equity".

## DOCTRINE OF "EQUITY"

Equity simply means "fairness" and it was developed as a form of appeal (on the decisions based on common law). It was mainly administered by the Lord Chancellor to grant relief to an aggrieved party whose complaint of injustice arising from the administration of common law rules. The followings are some of the maxims which were introduced to correct the harshness of common law:-

- a. He who comes into equity must come with clean hands.
- b. Delay defeats equity
- c. Equity will not suffer a wrong without a remedy.
- d. He who seeks equity must do equity.
- e. Equality is equity.

## 2. NIGERIAN LEGISLATURE

This consists of statutes and subsidiary legislations. Statutes are laws enacted by the Legislative arm of Government. Statutes are called Ordinances, Acts, Decrees, Laws or Edicts depending on when and under which form of government they were made. Subsidiary legislation also known as delegated legislation

is enacted under the powers conferred by a statute. They are laws, made by person or bodies other than the legislature pursuant to express powers conferred on such persons or bodies.

- a. **ORDINANCES:** Ordinances were laws passed by the legislative body during the colonial era.
- b. **ACT:** An act is usually the end product of the process of passing a Bill into Law in parliament. This is the law enacted by the National Assembly comprising of both the Senate and House of Representatives during a civilian regime. A Bill which is signed by the president becomes an Act.
- c. **LAWS:** A Law is an enactment of the State Assemblies during a civilian regime. A Bill which is signed by the Governor of a state becomes a Law. A law is applicable only in the territory of a state unlike an Act of parliament which is applicable in the whole country.
- d. **BYE-LAWS:** These are rules and regulations made by the Local Government for the governance of the areas of jurisdiction.
- e. **DECREE:** A Decree is the equivalence of an Act. This is an enactment made by the Federal Military Government during a military regime.
- f. **EDICT:** These are enactments made by the Military Governor/Administrator of a state during a military regime.

## 3. CUSTOMARY LAW

Customary Law consists of the customs accepted by members of community as binding among them. Customary Law is not uniform or universally applicable. It varies from culture to culture and also varies from one community to another.

The following are the features of Customary Law,

Substantive law lays down people's rights, duties, liberties and powers. Substantive law is the rule of law itself. It is the law that prohibits the doing or not the doing of certain things by citizens. It defines the existence and extent of rights or liability in a particular branch of law. Questions of validity as in the Law of Contract or the elements of an offence as in Criminal Law are instances of Substantive Law.

## **B. SUBSTANTIVE AND PROCEDURAL OR ADJECTIVAL LAW.**

the protection of individual rights. Private Law is wider in scope than public Law. Private Law covers areas like tort, trust, contract etc. It deals with the rights and duties of individuals towards each other rather than towards the state. It deals with affected by its application.

Public Law covers areas like Criminal Law, Administrative and Constitutional Law. It governs the relationship of individuals and the state. The entire society is

## **A. PUBLIC AND PRIVATE LAW.**

Law can be classified into the following:-

### **CLASSIFICATION OF LAW**

Court, Adamawa.

This is a situation whereby a judge follows the earlier decision of a court in a subsequent case. As a general rule, under the doctrine of judicial precedent, decisions of the superior or a higher court is binding on an inferior or lower court. E.g. the decisions of the high court of Adamawa are binding on the Magistrate

### **5. JUDICIAL PRECEDENT**

d. Qiyas, which consists of analogies from the Quran and Sunna.

c. Hadith or Sunna of the prophet,

b. Ijma which is the consensus of the muslim,

a. The Holy Quran,

Sources of Islamic Law include the following:

law which derives its origin from the Quran.

Islamic Law is also classified as a customary Law. Islamic law is essentially a divine

### **4. ISLAMIC LAW**

force.

c. Incompatible directly or by implication with any law for the time being in

b. Contrary to public policy.

a. Repugnant to Natural Justice, equity and good conscience.

The three Repugnancy Doctrines are:-

validity also known as the "Repugnancy Doctrine".

For any customary law to be enforceable it must have passed the three (3) test of

### **VALIDITY AND ENFORCEMENT OF CUSTOMARY LAW**

b. Flexibility and adaptability to changing trend.

described as a "mirror of accepted usage".

a. Acceptance and recognition. In *Eshugbayi Eleko Vs Government of Nigeria* (1931) A. C 662, it was held that the assent of the native community gives custom its validity. Also in *Owonyin V Omotosho*, customary law was

- Procedural or adjectival law relates to the enforcement of rights and duties.
- It prescribes the method for enforcement of rights and duties. The rule of procedural law therefore specifies the way in which an action is to be initiated in court, the method of giving evidence at trial etc. The procedural rules are found in the Evidence Act, Criminal procedure Act, Criminal procedure code etc.
- C. MUNICIPAL AND INTERNATIONAL LAW**
- Municipal laws are such laws emanating from a particular country and having the force of law within its territory. For example, the law existing in Nigeria is a municipal law.
- International Law is further divided into public international law and private international law. Public international law consists of those rules which regulate the relationship among sovereign states.
- Private international law deals mainly with the system of laws which should be used in cases which contain some "foreign" elements. For example if two Nigerians make a contract in England to sell goods situated in London.
- D. WRITTEN AND UNWRITTEN LAW**
- Written laws are usually found in documents and can be said to be an assemblage of norms in one or more documents.
- Unwritten laws are principles or rules of behavior that is not written down at all as in the case of customary law.
- E. CIVIL AND CRIMINAL LAW**
- Criminal Law is that branch or part of the law that deals with definition and regulation of injurious of human conduct punishable by the state. It protects the public at large by punishing certain conducts which are believed to be harmful to the society.
- Civil Law is concerned with the infringement of a person's right, for which the person wronged may sue for damages or some other civil remedy. Examples are torts and breaches of contract, land law, family law.
- DISTINCTION BETWEEN CRIMINAL AND CIVIL LAW**
1. A crime is a public wrong, where as a civil action is a private wrong.
  2. Criminal Law is narrower in scope than civil law. Criminal Law is solely concerned with the regulation of conduct which is injurious to the society.
  3. The purpose of criminal law is to punish offenders, while that of civil law is to give compensation.
  4. The standard of proof in criminal cases is beyond reasonable doubt, whereas in civil matters it is based on probabilities of doubt.
  5. Criminal trials are generally initiated by the state although private person can still institute criminal actions. Civil proceedings are initiated by individuals.
- IMPORTANCE OF LAW**
- a. Laws are made to regulate procedures and ensure the running of affairs in the society.
  - b. Law confers rights and imposes obligations as well as duties on citizens and Government.
  - c. Law serves as a means of reconciling conflicting interest among persons.
  - d. Law guides human behaviour within the society.

e. Law is used for the maintenance of law and order in the society. Culpits are apprehended and taken care of accordingly. Through the police, the courts and the prisons.

## HIERARCHY OF COURTS IN NIGERIA

The Nigerian Court system is hierarchical in nature. It may be in an ascending or a descending order. In an ascending order the lowest court comes first and if it is in a descending order the highest court comes first.

The hierarchy of courts in a descending order can be seen as follows;

1. Supreme Court
2. Court of Appeal.
3. Sharia Court of Appeal/State high court/Federal high/Customary court of Appeal/Special Tribunals/National Industrial court.
4. Upper Area Court/District Courts/Magistrates courts/Juvenile courts/Coroner's court.
5. Area courts/customary courts.

1. **SUPREME COURT [section 230 of the constitution].** This is the final court to which appeal could be made in Nigeria and its decisions are final. The court is composed of the Chief Justice of Nigeria and such number of justices not exceeding 21. The Supreme Court has both Original and Appellate Jurisdiction. It hears and determines appeals from the decision of the court of appeal.

## 2. COURT OF APPEAL. [Section 237 of the 1999 constitution]

The court of Appeal is the second in Hierarchy in the hierarchy of courts in Nigeria. The court of Appeal has both Original and Appellate Jurisdiction. The Original Jurisdiction of the Court of Appeal is exclusive to it and they are as follows;

- a. Whether any person has been validly elected into the office of the president or his vice,
- b. Whether the term of office has ceased and
- c. Whether the office of the president or his vice is vacant.

The court of appeal has the right to hear appeals from the Sharia Court of Appeal, State high court, Federal high court, Customary court of Appeal, Court martial, National Industrial court and other Tribunals.

The court is composed of a President and such numbers of justices of the court not less than 49 of which not less than 3 shall be learned in Islamic personal law and not less than 3 shall be learned in Customary personal law

## 3. FEDERAL HIGH COURT. (Section 239)

A Federal High Court exists in all the states of the Federation. The Court is composed of the Chief Judge of the Federal High Court and such numbers of Judges as may be prescribed by an Act of the National Assembly.

The Federal High Court may adjudicate on matters including revenue of the federal government, customs, immigration, tax matters, banking, foreign exchange etc.

## 4. STATE HIGH COURT. (Section 253)

Each State of the Federal Republic of Nigeria has High Courts. High Courts of the States are Courts of unlimited jurisdiction in criminal and civil matters. The state High Court shall consist of the Chief Judge and such number of Judges as may be prescribed by the House of Assembly.

## THE LEGAL PROFESSION

Customary court exists in the Southern states as an alternative to the Area Court in the North. The various states in the south have customary court regulated by state Laws.

### 12. CUSTOMARY COURT

Area Court exists in the Northern state of Nigeria including the federal capital territory Abuja.

### 11. AREA COURT

Magistrate Courts are not created by the constitution but exist by virtue of the laws of various states of the Federation. It must be noted that in the North when a Magistrate court is sitting in its civil jurisdiction it is called a District Court.

### 10. MAGISTRATES/DISTRICT COURT

This court is specially established to handle exclusively cases in which infants or young offenders are involved. The procedures in the juvenile court are quite different from those of the normal courts for adults. Proceedings are held in secret.

### 9. JUVENILE COURT

These are special courts established by the coroners of each state to carry out investigation into cases of mysterious, violent or unnatural death. Such an accused person suddenly dies in the cell or under police custody.

### 8. CORONER'S COURT

The Court has civil jurisdiction on matters including, labour, trade unions, environment and conditions of works, health safety, strike etc.

This Court handles exclusively matters of industrial nature, trade disputes and collective agreement. The National Industrial Court is composed of a president and other Judges appointed by the President.

### 7. NATIONAL INDUSTRIAL COURT (Section 254c)

The establishment of this court is also not mandatory in all states. The establishment of the customary Court of Appeal is however compulsory in the federal capital territory Abuja (FCT). The court hears appeals from the customary courts only in civil matters. The Court also has both appellate and supervisory jurisdiction in civil matters. The customary court of appeal of a state consists of a President and such other Judges as may be prescribed by the House of Assembly.

### 6. CUSTOMARY COURT OF APPEAL. (Section 280)

The various states are made by the governor of the state. The establishment of the Grand Kadi of the FCT is made by the president, while that of who is a Muslim scholar and may not necessarily be qualified in Law. The appointment of the Grand Kadi of the FCT is made by the president, while that of The Sharia Court of Appeal shall be presided over by the Grand Kadi of the State of Islamic personal Law as it relates to marriage, divorce, inheritance etc.

both appellate and supervisory jurisdiction in civil proceedings involving questions is however compulsory in the federal capital territory Abuja (FCT). The Court has established by a state who desires it. The establishment of the sharia Court of Appeal can only be established by a state who desires it. The establishment of the sharia Court of Appeal is not mandatory. It can only be

### 5. SHARIA COURT OF APPEAL

Legal Profession in Nigeria is made up of Law officers and judicial officers. The Law officers are the practicing lawyers who are at the Bar and the judicial officers are those who preside over the courts as judges and Magistrates. They are called the Bench.

#### **THE BENCH**

This consists of Justices of the Supreme Court, Justices of the Court of Appeal and Judges of both the Federal and State High Court. Magistrates are however regarded as members of the lower Bench.

#### **THE BAR**

This consists of legal practitioners. The Attorney-General of the Federation is the official leader of the Nigerian Bar. Any legal practitioner is entitled to practice as a Barrister and a solicitor. A legal practitioner in Nigeria is called both a 'solicitor and advocate' or a Barrister and solicitor of the Supreme Court of Nigeria. A Barrister has the right of audience in Court thus has the right to go to court to advocate or conduct litigation. A solicitor does not go to court, he merely renders advisory services and prepares legal documents. It is possible to be a lawyer without being a legal practitioner because the lawyer only has a degree in Law. Whereas a legal practitioner has a degree in law and is also called to the Nigerian Bar.

#### **SENIOR ADVOCATE OF NIGERIA (SAN)**

When a legal practitioner has acquired a wide range of experience he could be appointed as a SAN, as a mark of honour and respect. This status entitles him some certain rights and privileges. For instance, there are minimum limits to the briefs he could take in terms of monetary values. His cases shall be mentioned first when appearing in court and he must always be accompanied by a junior counsel.

#### **COUNCIL OF LEGAL EDUCATION**

The main function of the council of legal Education is to arrange for the education of persons seeking to become members of the legal profession.

#### **THE BODY OF BENCHERS**

The main duty of the body of benchers is to call and admit legal practitioners to the Bar. It is composed of distinguished members of the legal profession.

#### **WHAT IS A CONSTITUTION**

A Constitution may be defined as a body of law which determines how a state is governed. It defines the structure and functions of the organs of government. It also declares the principles which regulate the operation of these organs and defines the bonds between the citizen and the state.

#### **SUPREMACY OF THE CONSTITUTION**

Supremacy of the constitution means that the law of the country is superior to any person or authority in the state. The law is higher than everyone and even the government. The government is legally bound to conduct itself in accordance with the provision of the Constitution. The government has no right to molest or imprison



a person unless the person is pronounced guilty, duly convicted and sentence to prison by a competent court of law.

Section 1 (1-3) of the 1999 constitution of the Federal Republic of Nigeria States thus:-

- **Section 1 (1)** provides that "This constitution is supreme and its provisions shall have binding force on all authorities and persons throughout the Federal Republic of Nigeria".
  - **Section 1 (2)** provides that; "The Federal Republic of Nigeria shall not be governed nor shall any person or group of persons take control of the Government of Nigeria or any part thereof, except in accordance with the provisions of this Constitution".
  - **Section 1 (3)** provides that "If any other law is inconsistent with the provision of this Constitution, this constitution shall prevail and that other law shall to the extent of the inconsistency be void".
- It must be noted that the need for the supremacy of the Constitution is based on the status of the Constitution as the ground norm of all other laws and in the country.

## **SEPARATION OF POWER**

Separation of power is the sharing of powers between the three arms of government i.e. the Legislative, the Executive and the Judiciary.

### **EXECUTIVE POWERS (section 5)**

The executive arm of government is vested with the power to implement the law. Such powers shall be vested on the president, Vice President, Ministers or Officers in the public service of the Federation.

### **LEGISLATIVE POWERS (Section 4)**

The legislative powers of the Federal Republic of Nigeria shall be vested in the Federal Assembly which consists of the Senate and the House of Representatives. The National Assembly possesses the powers to make laws for Nigeria with respect to items contained in the Exclusive Legislative list which includes the following;

- a. Arms and ammunition;
  - b. Passports and visas
  - c. Aviation etc.
- The House of Assemblies of various States also has the power to make laws on matters contained under the concurrent list which includes the following;

- 1. University and post primary education,
- 2. Electoral law; Allocation of revenue.
- 3. Collection of taxes.

### **JUDICIARY POWER (Section 6)**

The judicial arm of government is vested with the power to interpret the law. The judicial powers of the Federation and the states shall be vested in the courts.

## **RULE OF LAW**

Rule of law means that a country is governed by civil law or regular law. That is laws which are reasonably justifiable in a democratic society as apposed to oppressive and arbitrary law.

The opposite of rule of law is rule by force, arbitrariness, dictatorship, tyranny and ultimately anarchy and chaos.

## THE PRINCIPLE OF RULE OF LAW

1. The supremacy of law
2. Equality before the law.
3. An independent judiciary and respect for its decision.
4. Action according to law
5. Respect and protection of human rights.
6. Principle of impartiality.

## CITIZENSHIP

Citizenship can be defined as the act of belonging to a given country. Under the 1999 constitution, there are three main ways by which citizenship of Nigeria can be acquired. The ways are contained in sections 25-28 of the 1999 constitution.

The various ways by which a person can acquire the Nigerian Citizenship are as follows:-

### 1) CITIZENSHIP BY BIRTH

*Section 25 (1) of the 1999 constitution* provides that the following persons are citizens of Nigeria by birth;

- i. Every person born in Nigeria before the date of independence either of whose parents or any of whose grandparents belongs or belonged to a community indigenous to Nigeria.
- ii. Every person born in Nigeria after the date of independence either of whose parents or any of whose grand parents is a citizen of Nigeria and, iii. Every person born outside Nigeria either of whose parent is a citizen of Nigeria.

### 2) CITIZENSHIP BY REGISTRATION

*Section 26 (1)* provides that subject to *section 28*, a person may be registered as a citizen of Nigeria, if the President is satisfied that;

- i. He is a person of good character.
- ii. He has shown a clear intention of his desire to be domiciled in Nigeria, and iii. He has taken the oath of allegiance prescribed in the seventh schedule to this Constitution.

The provision of the section shall apply to:-

- a. Any woman who is or has been married to a Nigerian or, b. Every person of full age and capacity born outside Nigeria or any of whose grand parents is a citizen of Nigeria.

### 3) CITIZENSHIP BY NATURALIZATION: *Section 27 CFRN* provides that,

subject to *section 28 CFRN*, any person who is qualified in accordance with this section may apply to the president for the grant of a certificate of naturalization if he satisfies the president that;

- a. He is a person of full age and capacity.
- b. He is a person of good character.
- c. He has shown a clear intention of his desire to be domiciled in Nigeria;

- d. He is in the opinion of the Governor of a state where he proposes to reside, acceptable to the local community and has assimilated into the way of life of Nigerians in that part of the Federation.
- e. He has made or capable of making useful contribution to the advancement, progress and well-being of Nigeria;
- f. He has taken the oath of allegiance contained in the seventh schedule of the constitution, and
- g. He has before making his application, either
  - i. Resided in Nigeria for a consecutive period of fifteen years, or
  - ii. Resided in Nigeria for a consecutive period of twelve months, and during a period of twenty years, has stayed for a period amounting in the aggregate of not less than fifteen years.

**Section 28** provides for a restriction to those applying for Nigerian citizenship by registration or naturalization if they retain citizenship of another country other than their country of origin.

However, a Nigerian citizen by birth may acquire citizenship of another country by registration or naturalization thereby acquiring dual citizenship.

**RENUNCIATION AND DEPRIVATION OF CITIZENSHIP**

Any citizen of Nigeria of full age and capacity who wish to renounce his citizenship shall make a declaration to that effect.

It is important to note that a citizen of Nigeria by birth cannot be deprived of his citizenship. He can however, renounce his citizenship as earlier mentioned.

### **NATIONALITY**

Nationality is that quality or character which arises from the fact of a person's belonging to a nation or a state as a citizen. Nationality determines the political status of the individual especially with reference to allegiance or loyalty. Nationality confers protection of the state on any person who qualifies for such a status. A person who is not a national of a particular country is an Alien.

It is important to note that it is possible for a person to be a national of more than one country.

### **DOMICILE**

This is the country that a person treats as his permanent home and to which he has the closest legal attachment. It is quite possible for a person to have more than one residence but he can only have one domicile.

No matter the number of years which a person spent in a place, he would not be domiciled so long he has the intention of returning to his original place one day. Domicile is different from Nationality in that it is quite possible to change the domicile without losing one's nationality. However a change of domicile means a change of rights, duties and obligations in accordance with the legal system in the new home land.

### **FUNDAMENTAL HUMAN RIGHT**

These are the basic rights to which every citizen is entitled to as entrenched in the 1999 constitution of the Federal Republic of Nigeria. They are often referred to as an inalienable right. Any attempt by any person, group or the government to temper

with the rights may be subject to a court's action. Such rights are outlined in chapter IV (33-46) of the 1999 constitution. These rights include;

#### **1. RIGHT TO LIFE (SECTION 33)**

No person shall intentionally deprive another person of his life except in execution of the sentence of a court in respect of a criminal offence.

#### **2. RIGHT TO DIGNITY OF HUMAN PERSON (S. 34)**

No person shall be subjected to torture or to inhuman or degrading treatment, slavery or servitude or compulsory labour. Exceptions to this include services in the Armed forces or the Nigerian Police Force or any labour occasioned by an emergency or well-being of the community, or compulsory National service.

#### **3. RIGHT TO PERSONAL LIBERTY (S. 35)**

No person shall be deprived of his personal liberty except in the following cases and in the procedure prescribed by law. A person can be deprived of his personal liberty in the following instances;

a. In execution of court order or sentence.

b. By reason of failure to comply with the order of the court.

c. For purposes of bringing him before the court in execution of the order of the court upon an alleged criminal offence.

d. For a person under 18 years of age with a view to providing for his education or welfare.

e. For the purpose of preventing the unlawful entry of any person into Nigeria. However, no person shall be detained for a period longer than the maximum period of imprisonment prescribed for the offence.

#### **4. RIGHT TO FAIR HEARING (S. 36)**

In the determination of his civil rights and obligations against any person, government or authority a person shall be entitled to a fair hearing within a reasonable time by a court or other tribunal established by law. Such a hearing shall also be heard in public and within a reasonable time. Section 36 (5) also provides that every person who is charged with a criminal offence shall be presumed innocent until he is proved guilty.

#### **5. RIGHT TO PRIVATE AND FAMILY LIFE (S. 37)**

By this provision, the privacy of citizens, their houses, correspondence, telephone conversations and telegraphic communication is protected.

#### **6. RIGHT TO FREEDOM OF THOUGHT, CONSCIENCE AND RELIGION**

(S. 38) Every person shall be entitled to freedom of thought, conscience and religion as well as freedom to change, manifest or propagate his religion or belief in worship. Section 38(4) however, prohibits being a member of a secret society.

#### **7. RIGHT TO FREEDOM OF EXPRESSION AND THE PRESS (S. 39)**

Every person shall be entitled to freedom of expression including freedom to hold opinions and to receive and import ideas and information without interference.

#### **8. RIGHT TO PEACEFUL ASSEMBLY AND ASSOCIATION (S. 40)**

Every person shall be entitled to assembly freely and associate with other persons and in particular, he may form or belong to any political party, trade union or any association for the protection of his interests.

## 9. RIGHT TO FREEDOM OF MOVEMENT (S. 41)

Every citizen of Nigeria is entitled to move freely throughout Nigeria and to reside in any part thereof and no citizen of Nigeria shall be expelled from Nigeria or refused entry thereto or exit therefrom.

## 10. RIGHT TO FREEDOM FROM DISCRIMINATION (S. 42)

A citizen of Nigeria of a particular community, ethnic group, place of origin, sex, religion or political opinion shall not by any reason only that he is such a person be subjected to disabilities or restrictions to which Nigerian citizens are not made subject.

Section 42(2) provides that no citizen of Nigeria shall be subjected to any disability or deprivation merely by reason of the circumstances of his birth.

## 11. COMPULSORY ACQUISITION OF PROPERTY (S. 43)

No movable property or any interest in an immovable property shall be taken possession of compulsorily and no right over or interest in any such property shall be acquired compulsorily in any part of Nigeria except in the manner and for purposes prescribed by a law.

The implication of this is that all the rights and freedom are not total, absolute nor unassailable under any circumstances. Section 45 of the constitution provides when a person's right can be restricted.

A person's right can be restricted in the following circumstances;

- a. In the interest of defence, public safety, public order, public morality or public health or;
- b. For the purposes of protecting the rights and freedom of other persons.

## LAW OF TORTS

A tort is a civil wrong arising from an act or omission of an individual or group. Such an act or omission normally gives rise to civil proceedings for damages generally.

### TYPES:-

### NEGLIGENCE

Negligence simply means carelessness or inadvertence. This is the failure to exercise the standard of care that a reasonably prudent person would have exercised in a similar situation.

In order to succeed in an action for negligence, a plaintiff must prove three elements;

- a. That the defendant owes him duty (a duty of care).
- b. That the defendant is in breach of that duty
- c. That he is entitled to damages.

These principles of the tort of negligence were established in the celebrated case of *Donoghue V Stevenson (1932) A. C 562.*

### OCCUPIER'S LIABILITY

Occupiers of premises are generally held liable at law for any breach of duty to those who enter their premises. An occupier is a person who has control over the building, structure or premises. This may include land, buildings whether temporary and permanent structure.

## DEFENCE OF AN OCCUPIER

- a. Any proof that a person claiming damages had sufficient notice i.e. the visitor must have been warned of the possibility of sustaining the injury e. g. "Beware of dogs". Is enough notice.
- b. The occupier may also plead, the maximum, "volenti non fit injuria". (No injury is done to a person who consents).
- c. The occupier may plead that defective premises was the handwork of an independent contractor who had everything under his direct supervision and control. However, where the occupier fails to ensure that the independent contractor he employed is competent, he would be held vicariously liable too.

## NUISANCE

Nuisance is a tort which protects a person's interest in the use and enjoyment of his property, especially land. There are two types of nuisance namely;

1. Public nuisance
2. Private nuisance

**PUBLIC NUISANCE:-** A public nuisance is a crime and it is usually instituted by the Attorney-General. It is however, important to state that an individual may sue if he can show that he has suffered peculiar damage over and above that suffered by the public generally. E.g. if A digs a big hole along a major road and B falls into it and sustains an injury, B can sue A because he had secured a peculiar damage over others.

Examples of public nuisance are, obstructing the road, selling adulterated, unhygienic food, to erect a factory which emits excessive smoke, fumes or dirt so as to cause discomfort to persons in the locality. Keeping a brothel is also a public nuisance.

**PRIVATE NUISANCE:-** This involves the substantial interference with a person's use and enjoyment of his land on a right-in, or over the land or an indirect physical injury. Private nuisance covers things like noise, fume, smoke, smell, vibrations etc.

Nuisance is not actionable per se. Some damage must have occurred to the plaintiff to enable him to sue. In order words a person who does not sustain any damage cannot claim under an action of Nuisance.

**ACTIONABLE PER SE**

This phrase means that there is no need to prove special or actual damage. The law presumes that there is damage without any further proof.

## DEFAMATION

Defamation is a statement which exposes a man to hatred, ridicule or contempt or causes him to be shunned or avoided by right-thinking members of the society. It is a false statement about a man to his discredit. It is calculated to injure a person, his office, profession or trade. There are two classes of defamation.

1. **LIBEL:** this is a statement made in a permanent form. These are written or permanent words. It may be in writing, printed, by photography, by carving and statue or by cartoons.

2. **SLANDER:** this is a statement made in a transitory form (lasting only for a short time) and it is usually made by speech or gesture. These are spoken or impermanent words.

An important difference between libel and slander is that libel is **actionable per se**.

It is very important to note that for defamation to be actionable; the defamatory statement or act must be published to a third party. There is no publication unless that third party understood it as defamatory.

## DEFENCES IN DEFACTION

a. Justification

b. Fair comment

c. Consent

d. Privileged statement.

## TRESPASS

This is the act of going into the land of another without any invitation of any sort and whose presence is either unknown to the owner, or if known, will be objected to. This is the going into another person's land without his consent.

It can also mean an unlawful act committed against a person or his property. From the above definitions, it can be seen that trespass can either be to a person, his land, goods or chattel.

a) **Trespass to person:** - This may be battery, assault or false imprisonment. Assault is the tort of putting a person in the fear of immediate physical injury. False imprisonment is where a person intentionally restricts another's person freedom of movement.

b) **Trespass to land:** - this may take the form of entering the land of another person without his consent.

c) **Trespass to goods or chattel:** - This is the act of committing without lawful justification, any act of direct physical interference with a chattel possessed by another.

## PASSING-OFF AND DECEIT

Passing off is the selling of goods or the carrying on of a business in such a manner as to mislead the public into believing that the product or business which belongs to another person is actually his.

The essence of passing-off is to protect traders against unfair competition aimed at acquiring by false or misleading devices the benefit of the reputation already achieved by the rival trader.

For example in *Niger Chemist V Nigeria Chemist*, it was held that such names will mislead the public. This is because an ordinary man will believe that the name Niger

## DECEIT

chemist and Nigeria chemist are the same.

This is a false statement made deliberately or recklessly by a person without any belief in its truth. Fraud must be proved to succeed in deceit; this is because deceit can only occur where a person is not truthful.

#### **VICARIOUS LIABILITY**

This is a situation where a person will be liable for the torts of another, even though he (the person liable) is not a party to the tort or did not himself commit the tort in question. For example, if a driver working with the Federal Polytechnic hits a person's car during the course of his employment, the Federal Polytechnic will be vicariously liable.

This subject will be treated under two headings;

- a. Master and servant relationship
- b. Employer and independent contractor relationship.

The general rule is that a master is vicariously liable for the tort committed by his servant during the course of performing his duty. This relationship exist when one person employs another to do work for him on the terms that the servant is subject to the control of his employer as to the manner in which the work is to be done. This test is known as the "Control Test". The control test however has its short comings because an employer cannot control the manner in which professionals like doctors perform their duties. The *ORGANISATIONAL TEST OR INTERGAL TEST* was therefore propounded and it states that if the servant job forms an integral part of the organization the relationship of master and servant exist. These persons are employed under a "*CONTRACT OF SERVICE*".

#### **b. EMPLOYER AND INDEPENDENT CONTRACTOR RELATIONSHIP**

An independent contractor is the person engaged to do a job and produce a result. Such a person is always left to his direction and he is never subject to any form of control. The general rule is that a master is not vicariously liable for the tort committed by an independent contractor. These persons are employed under a "Contract for services".

#### **GENERAL DEFENCES IN THE LAW OF TORT**

1. **VOLENTI NON FIT INJURIA**: - No one complains of injury to which he freely consents.
2. **ACT OF GOD**: - This could be due to a major force which is beyond the control of any person. Examples of these are earthquakes, earth tremor etc.
3. **STATUTORY AUTHORITY**: - Such powers are absolute. An example is the demolition of structure by government for the construction of public roads.
4. **CONTRIBUTORY NEGLIGENCE**: This means that the plaintiff has a share in the fault. The effect is to reduce the damage that is recoverable. In *Butterfield V Forester* (1809) 11 East 62. The defendant was repairing his house and put a pole on the highway. The plaintiff drove his car carelessly and got it damaged. It was held that the plaintiff contributed to the accident by driving carelessly.



5. **SELF-DEFENCE:** - The law allows for a reasonable force in order to safeguard one's life.
6. **NECESSITY:** - An example is the need for the fire fighters to break into a neighboring apartment to be able to extinguish a fire and rescue people who have been trapped.

## WHAT IS A CONTRACT

A contract can be defined as an agreement which is legally binding on the parties to it and which if broken may be enforced by action in court against the defaulting party.

It can also be defined as an agreement between two parties which is legally binding on such parties. See the case of *Society General Bank (Nig) Ltd v Safe steel and Chemical Manufacturing Ltd (1998) 5 NWLR*. The basis of any given contract is an agreement. In this regard there must be a CONSENSUS AD IDEM (The coming together of two minds with a common intention)

It should be noted that it is not every undertaking or promise that is intended to give rise to a cause of action. For example, if the class rep agrees to give his sister a camera phone for her birthday but later refuses to do so, the sister cannot enforce his refusal because they both did not contemplate, when entering into the agreement that it should be enforceable in law. Similarly if a father fails to give to his son a camera phone upon making a good grade, the son cannot enforce it.

It must be noted that the first and second agreement are domestic agreement. It must also be noted that all contracts are agreements but it is not all agreements that are contract.

A contract may be void or voidable. A void contract is that which lacks the essential ingredients or elements of valid contract and therefore has no legal effect. Such contracts are void ab initio. Examples are illegal contracts, contracts of immorality etc.

Avoidable contract is that which is valid in the first place but may be ended at the instance of one of the parties to it due to some discovered defect. It remains valid until a party or both parties decide to set it aside.

## FORMS OF CONTRACT

A contract may take the following forms:

- a. Written,
- b. Oral
- c. Impliedly.

A contract can take any form unless there is a special statutory provision to the contrary. Form has no effect whatever on the validity of a contract.

It is important to note that some contracts must be in writing and non-compliance will make the contract unenforceable. Examples are contract of Apprenticeship and that of a Seaman. It however important that a contract should be in writing so as to facilitate the interpretation or proving of the terms of the contract. This will also help to resolve any conflict.

## ESSENTIALS OF A VALID CONTRACT

A contract must satisfy certain requirement in order to be enforceable at law. These requirements are: -

**Offer:** - An offer is a definite statement or proposition made by one party called the offeror to another party called the offeree, clearly and precisely indicating the terms under which the offeror is willing to enter into a contract with the offeree.

For a statement to amount to an offer capable of acceptance, it must satisfy three conditions.

1. It must be definite, certain and unequivocal.
2. The statement must come from the person liable to be bound if the terms are accepted.
3. The offer must be communicated to the offeree.

An offer may be either specific or general. It is specific if it is made to a definite or particular person and he alone may accept it.

An offer is general if addressed to the public or world at large or to a class of person. An example of a general offer can be seen in the well-known case of *CARILL V CARBOLIC SMOKE BALL CO. (1892) 2QB. 484*. The company advertised that it would pay £100 to any person who used a smoke ball manufactured by it for a minimum period of two weeks, and gets influenza. The plaintiff bought one smoke ball and used it as specified and still caught influenza. The company was held liable to the plaintiff for the £100.

## OFFER DISTINGUISHED FROM INVITATION TO TREAT

An invitation to treat is a preliminary to an offer. It is merely a preliminary move in negotiations which may lead to a contract. For example if MR. A advertises his intention to sell his house, in Yola for a suitable sum, and for not less than 5 million Naira, his advertisement cannot constitute an offer because he is clearly reserving to himself the right to reject offers from members of the public. It therefore follows that no action can lie against him if Mr. C who lives in Lagos comes down to Yola and Mr. A refuses to sell to him.

## 2. ACCEPTANCE

An acceptance is the final expression of assent to the terms of an offer. By acceptance the offeree indicates his intention and willingness to be bound by the terms of the offer.

For acceptance to be valid it must be unqualified and it must correspond with the offer. Any variation or modification of the offer while accepting will be invalid and it will amount to a **COUNTER-OFFER** and not an acceptance.

### 3. CONSIDERATION

Consideration was defined in the case of **CURRIE V MISA** as follows,  
 "A valuable consideration in the eye of the law may consist either in some right, interest, profit or benefit accruing to one party, or some forbearance, detriment, loss or responsibility, given, suffered or undertaken by the other  
 ...."

In order words, consideration may be described for the purpose of simplicity as the price paid by the offeree for the offeror's promise. Consideration does not only involve money but also the doing some act.  
 Consideration may therefore consist simply of an undertaking to do something which one is not obliged to do or to refrain from doing something which one is bound to do.

### RULES GOVERNING CONSIDERATION

a. Consideration must move from the offeree: - This is an alternative way of stating that only a person who has furnished consideration in a contract can bring an action to enforce a promise given by the defendant in that contract. In order words, a party that had not furnished any consideration in a contract cannot bring an action to enforce that contract.

b. Consideration may be executed or executory, but it must not be past.  
 c. Consideration need not be adequate but must have a legal value.  
 d. Consideration must not be illegal, immoral or contrary to public policy.

### 4. INTENTION TO CREATE A LEGAL RELATION

It is trite law that an agreement will not constitute a binding contract, unless it is intended by the parties to it that it should give rise to legal relation. It must be noted that agreements made under **DOMESTIC AND SOCIAL ENGAGEMENTS** cannot create a legal relation.

Thus, in **Spellman (1961) 1 WLR 921** a husband promised to buy his wife a car in order to improve their strained relationship. He then entered into a hire-purchase agreement in respect of the car which was delivered to their home. When he refused to transfer the car to his wife, she sued him to enforce the agreement. It was held that this was a purely domestic arrangement not intended to create any legal relations and the wife required no legal rights in this car.

However, where the performance of a domestic or social engagement involves great sacrifices on the part of one or both, parties the presumption may be rebutted, particularly where the plaintiff has performed his own part of the agreement.

**VITIATING FACTORS IN CONTRACT**

The basic rule of contract is that they are binding on the parties to them. However, even when all the ingredients which go to make a contract valid are present in an agreement, it may nevertheless turn out to be illegal (void), avoidable or unenforceable as a result of a defect or defects contained in or associated with it.

Vitiating factors in contracts are those factors that can affect a valid contract. The following are examples of vitiating factors:-

1. **Duress:** - This is a common law concept which means actual violence or threats of violence to a party or those near and to him. Acts carried out under duress usually have no legal effect.
2. **Undue influence:** - There will be presence of undue influence where the relationship between the parties is such that one of them is able to take an unfair advantage of the other. This is the influence that prevents someone from exercising an independent judgment with respect to any transaction. Undue influence may be presumed in some relationships like doctor and patient, Solicitor and client.
3. **Illegality:** - A contract that is prohibited by statute or law. An illegal contract is void and unenforceable.
4. **Incapacity:** - This is the lack of full legal competence. Incapacity can be as a result of being an infant, an illiterate, a drunkard or an insane person.

A contract that is entered into by a drunkard is binding on him unless it can be shown that at the time of making the contract he was incapable of understanding what he was doing and that the other party knew of his condition. The only type of contract that can be enforced against an infant is supply of necessities. Necessaries are goods or services suitable to the condition in life and actual requirement of an infant or a person subject to incapacity e.g. essential clothing or food.

5. **Mistake:** - This is a misunderstanding or erroneous belief about a matter of fact. Every case of obvious misunderstanding or misapprehension in which one or both of the parties to a contract would not have entered into the contract if they had realized the true facts would be regarded as a mistake. It applies only to facts. A mistake of law is ineffective as every person is presumed to know the law.

### TYPES OF MISTAKE

- a. Common mistake. (Res Extincta, Res sua)
- b. Mutual mistake
- c. Unilateral mistake
6. Misrepresentation: - This is an untrue statement of fact, made by one party to the other in the course of negotiating a contract that induces the other party to enter into the contract.

## TYPES OF MISREPRESENTATION

- a. Innocent misrepresentation
- b. Fraudulent misrepresentation
- c. Negligent misrepresentation

## CONDITIONS AND WARRANTIES

Condition: - This is a major term of a contract. It is frequently described as a term that goes the root of a contract or is of the essence of a contract. Breach of a condition constitutes a fundamental breach of the contract and entitles the injured party to treat it as discharged or being terminated.

## WARRANTY

A warranty is a term which though must be performed, is not so vital that failure to perform it goes to the substance of the contract.

A breach of warranty will entitle the innocent to claim damages and not to treat the contract as discharged or terminated by breach.

## DISCHARGE OF CONTRACT

The discharge of a contract means that the contractual relationship between the two parties has come to an end and the parties are free from their obligations to each other.

A contract may be discharged in the following ways;

1. **By performances:** where both parties to the contract have performed their respective obligations, the contract is completely extinguished. This is the most obvious way in which a contract may come to an end.
2. **By Express agreement:** A contract came into existence as a result of agreement, so it can also be terminated by agreement by the same parties.
3. **By Breach:** This is the failure by a party to a contract to perform his obligations under a contract or an indication of his intention not to do so. A breach of contract always entitles the injured party to an action for damages. The injured party can also decide to terminate the contract.

4. **By frustration:** Frustration occurs whenever the law recognizes that without default of either party a contractual obligation has become incapable of being performed because of impossibility of performance. In order words the doctrine of frustration states that the parties to a contract are excused from further performance of their obligation if some unexpected event occurs during the time of the contract without the fault of either party which makes further performance impossible.

The following types of events can frustrate a contract;

- a. Outbreak of war e.g. the 2014 insurgent attack on Mubi.
- b. Destruction of the subject matter of the contract.
- c. Government requisition of the subject matter of the contract

## REMEDIES AVAILABLE FOR BREACH OF CONTRACT

**A. DAMAGES:** - A sum of money awarded by a court as compensation for a breach of contract. The aim of awarding damages for breach of contract is to put the injured party, so far as money can do it, in the same position as if the contract had performed.

**B. QUANTUM MERUIT:** - (as much as he deserved). In the event of a breach of contract, the injured party may have a claim other than that for damages and claim payment for what he has done under the contract.

Where there is a breach, the injured party instead of suing for damages, may claim payment for what he had done under the contract.

**C. SPECIFIC PERFORMANCE:** - This is an equitable remedy. It is order issued by the court, ordering a defendant to perform the promise he had made. The remedy is not granted as of right but at the court's discretion and will only be granted if the award of damages will not adequately compensate the injured party for the loss suffered as a result of the breach.

**D. INJUNCTION:** - This is an order of the court, ordering a person to do or not to do certain act or acts. Injunction may be prohibitive where it is sought to stop the doing of some acts or mandatory where it compels the performance of an act.

**E. RESCISSION:** - This is the setting aside of a contract and it is treated as if it had never existed. Rescission terminates the contract. It must however be noted that there are limits on the right of rescission. It cannot be exercised unless it is possible. For example a buyer of goods cannot rescind if he cannot return the goods, and a seller of goods cannot rescind if they have been resold to a third party.

## LEGAL PERSONALITY

In law, it means a legal entity having rights and obligation of its own which the law can enforce. Such a person may be a natural person i.e. an individual or an artificial person.

Natural persons are human beings, you and I. Not all human beings are recognized by the law as legal persons. Infants, insane persons and drunkards to some extent and for their own good, are subjected to certain legal incapacities from those of sane adults.

Artificial or juristic person;

Juristic person (artificial person). An entity that is recognized as having legal personality, i.e. it is capable of enjoying and being subject to legal rights and duties. It is contrasted with a human being who is referred to as a natural person.

An example of an artificial person is a corporation like a company which had been registered under CAMA (Company and Allied Matter Act). When a company is registered it becomes an incorporated company capable of

enjoying and being subject to legal rights and duties. It also possesses the capacity of succession.

There two major types of corporation namely;

- a. Corporation aggregate.
- b. Corporation sole.
- a. Corporation Sole: - This is an institution established by law. The law regulates it that people should aspire to its leadership in succession. The death of an incumbent holder does not affect the continuity of the corporation.

Here one person constitutes the corporation and has a dual personality, one corporate and the other human. A corporation sole was defined in case of *FAWEHINMI V NBA* as "a body politic having perpetual succession, constituted in a single person, who as right of some office or function, has capacity to take, purchase, hold and demise (and in some particular instances, under qualifications and restrictions introduced by statute, power to alienate) lands...."

Examples are the Oba of Lagos, the Rector of the Federal Polytechnic Mubi, the Vice-Chancellor of Universities, the president of a country etc.

- b. Corporation Aggregate:- these consists of companies registered under the company and Allied matters Act (CAMA). Corporation Aggregate consists of individuals united into one body. When a company is incorporated under the law, it assumes a corporate personality with certain legal consequences.

In *FAWEHINMI V NBA (Supra)* a corporation Aggregate was also defined as follows;

"A Corporation Aggregate is a collection of individuals united into one body under a special denomination, having perpetual succession under an artificial form, and vested by the policy of the law with the capacity of acting in several respects as an individual particularly of taking and granting property, of contracting obligations and of suing and being sued ..."

## EFFECTS OF CORPORATE PERSONALITY

1. The company becomes distinct and separate from its founder as held in *SALOMON V SALAMON (1982) AC 22 (H.L.)*.
2. The company can sue or be sued in its own name.
3. It can own or old its own properties in its name
4. It can also purchase or dispose of properties; and
5. It has perpetual succession.

## THE LEGAL PERSONALITY OF A MARRIED WOMAN

Married women were formerly treated in many respects like infants without contractual capacity. However, in this present day, married women have full contractual capacity.

#### a. CRIMINAL LIABILITY

A married woman has always been liable for the crimes she commits.

#### 1. CIVIL ACTION

In civil law a married woman has a right to enter into contracts, she can sue and be sued, she is liable in torts and she can own property in her private capacity. And by virtue of the law reform (Married women and tortfeasors Act, 1935, a married woman is possessed with the above mentioned rights

2. **INFANT:** - The infant relief *Act of 1874* governs the right and liability of an infant under a contract. At common-law, young persons under the age of 21 are called infants. Contracts of an infant fall under three headings namely, binding, voidable and void contracts.

1. **Binding contracts:** - An infant is bound by contracts for "necessaries" supplied to him and those of educational benefits. What is a necessary is not restricted to things which are required to maintain a bare existence such as bread and clothes but include articles which are reasonable necessary to the minor having regard to his state in life.

2. **Voidable contracts:** - These are contracts in which an infant can avoid (i.e. repudiate) if he likes upon attaining full age.

3. **Void contracts:** - These are contracts that are not valid. Examples are contracts for luxury.

#### NATURAL JUSTICE

Natural justice are the principles of justice and fairness which impose obligations on persons who have power to make decisions affecting other people to act fairly, in good faith, without bias and to afford a person the opportunity to be heard and adequately state his case, before a decision is made.

The doctrine of natural justice is provided for in Section 36(1) of the 1999 constitution which provides for fair hearing. Fair hearing is a more acceptable and comprehensive name for natural justice. Fair hearing or natural justice has two main rules and principles which are called the two pillars of Natural Justice. The principles are as follows;

1. Audi Alteram partem

2. Nemo iudex in causa sua

1. **Audi Alteram Partem:** - this is a Latin expression which means, hear the other party. It means hear the other side or the various sides in a dispute before reaching a decision or judgement. It is a principle of natural justice or fair hearing that no one should be condemned unheard.



In *FSSC V Laoye (1989) 2 NWLR*, the supreme court unanimously frowned at the serious failure of persons exercising judicial and quasi-judicial powers to hear the other side before condemning and passing judgement, even though as GOD, he is omniscient and he knew all they had done. God himself who created all things, who has all powers and who knows everything, gave Adam and Eve the opportunity to state their defence before passing judgement. Therefore the requirement that there should be natural justice and fair hearing in every matter and determination predates society. It is as old as the creation of man.

2. **Nemo judex in causa sua:** the rule against interest and bias. This Latin expression means that, no one should be a judge in his own cause. No one should be both a prosecutor and a judge, in a matter which he is a party, or has an interest. A judge should be uninterested and unbiased in the subject matter or proceedings before him.

Whenever, a judge has an interest in a matter, or where he is likely to be biased or be accused of bias, because of any interest or relationship, he should decline from hearing the matter.

In the case of *R V RAND (1866)*, it was held that disqualification of a judge from acting in a particular case can arise in two ways;

a. Where the judge has pecuniary interest however small it is in the subject-matter in dispute. In the case of *DR. ALAKIJA V MEDICAL DISCIPLINARY COMMITTEE (1958) 4 F. S. C. 38*, a medical practitioner contended that the medical disciplinary committee did not conduct the enquiry in accordance with the principle of natural justice in that the Registrar who was in fact the prosecutor took part in the committee's deliberations after he appellant and his legal representation had been asked to leave the room.

The Supreme Court held that the Registrar was neither by name nor by virtue of the position he held in the service of the Federal Government a member of the committee, and therefore, he should not have remained with the committee during the consideration of their decision. His mere presence at the deliberations offends the principle of *nemo judex in causa sua*.

b. Where there is a real likelihood of bias i.e. the judge would be biased in favour of one of the parties to a dispute.

## LAW OF TRUSTS

A trust is an equitable obligation which imposes upon a person called a trustee, duty of dealing with the property of a deceased person over which he has control. Such a property is called trust property and trustee exercises such control for the benefit of persons called beneficiaries or *Cestui que trusts*.

A beneficiary may himself be a trustee and as a general rule, the trustee is the legal owner of the trust property where as the beneficiaries are the equitable owners

## NATURE OF TRUSTS

Generally, all properties real or personal may be held in trust but the most frequently held ones are land, house, stocks and shares

## CLASSIFICATION OF TRUSTS

Trust can be classified into various forms as follows;

- a. Public Trust: This is also known as charitable trust. It is created for the benefit of the public. The Children's Hospital donated to Oyo State Government by late Chief T. A. Oni & Sons and the ETF (Educational Training Fund) are examples
- b. Private Trust: This are made for the benefit of an individual or a group or class of individuals or for some private purpose.

## DUTIES OF A TRUSTEE

- a. To administer the trust properly wisely.
- b. Not to make profit out of the trust properly.
- c. Not to delegate his duties except by the permission of the court.
- d. He must not commit criminal breach of trust.
- e. To distribute the trust properly to the beneficiaries when they become entitled to it.